

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 09/16/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and emailing Department12@scscourt.org
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling/emailing the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scscourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 09/16/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV434341	Susan & Cadir Lee v. JP Builders, et al.	MOTION TO COMPEL Plaintiff Cadir Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions Please CTRL CLICK (or scroll down to) Lines 1-6
LINE 2			MOTION TO COMPEL Plaintiff Susan Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
LINE 3			Plaintiff Cadir Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
LINE 4			Plaintiff Susan Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
LINE 5			Plaintiff Cadir Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions
LINE 6			Plaintiff Susan Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions
LINE 7	25CV459731	JP Morgan Chase Bank N.a v. Michal Krup	MOTION: ADMISSIONS DEEMED ADMITTED Plaintiff has demonstrated that Requests for Admissions are properly served, the time to respond has expired, and no response has been served on propounding party. Notice is proper. The Court has received no opposition from Defendant. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4 th 1403, 1410.) Good cause appearing, the motion is GRANTED. The truth of all specified facts in the Request for Admissions, Set One, 1-8 propounded by Plaintiff on Defendant on May 28, 2025, shall be deemed admitted. Plaintiff to prepare the final order that repeats the admissions to be admitted verbatim, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 09/16/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 8	26CV483739	Yen Lucero v. Ha Vu Le Dao, et al.	DEMURRER Demurrer is Unopposed and Sustained with 15 days leave to amend
LINE 9			MOTION TO QUASH Please CTRL CLICK (or scroll down to) Line 9
9:01 LINE 1	23CV425184	Apex Trans Inc, v. Transamerican Shipping, Inc.	MOTION TO WITHDRAW AS ATTORNEY Counsel ordered to appear for status update
LINE 2	23CV425156	Katrina Vallejo et al. v. Richard R. Hansen, et al.	COMPROMISE OF MINOR'S CLAIM (<i>re Elias Tadeo</i>) Notice is proper. The Court has received no opposition from Defendant. Good Cause Appearing, the petition is granted. The Court will sign the previously e-filed MC-351 proposed order approving compromise of claim.
LINE 3			COMPROMISE OF MINOR'S CLAIM (<i>re Heavenly Espinoza</i>) Notice is proper. The Court has received no opposition from Defendant. Good Cause Appearing, the petition is granted. The Court will sign the previously e-filed MC-351 proposed order approving compromise of claim.

- oo0oo -

Calendar Line 1-6

Case Name: *Susan & Cadir Lee v. JP Builders et al.*

Case No. 24CV434341

DEFENDANT'S MOTIONS TO COMPEL DISCOVERY RESPONSES in Lines 1-6 as follows:

- Plaintiff Cadir Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Cadir Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Cadir Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions

BACKGROUND

Defendant served its second set of written discovery on December 12, 2025. Responses were due January 13, 2026. Plaintiffs failed to serve timely responses.

Plaintiffs explain that their failure to respond was due to a calendaring error, wherein Plaintiffs mis-calendared an extension that they had given to Defendants to respond to discovery. The calendaring error occurred in a context where Plaintiffs had provided Defendants with 11 extensions to respond to discovery over a period of 4 months from August to December 2025.

Plaintiffs served initial responses with objections on February 24, 2026. Subsequently, Plaintiffs served amended discovery responses removing the objections on September 1, 2026, fifteen days before the hearing.

LEGAL STANDARD

Code of Civil Procedure sections 2030.290(a) and 2031.300(a) provide that a party who fails to serve timely responses waives all objections to discovery, including those based on privilege and work product protection. If a party to whom the demand for inspection is directed fails to serve a timely response ... (a) The party waives any objection to the demand, including one based on privilege or on the protection for work product.

However, the same statutes provide a mechanism for relief. The statutory provisions permit relief from waiver if (1) the party subsequently serves substantially compliant responses and (2) the failure to timely respond was the result of mistake, inadvertence, or excusable neglect. A party may be relieved from the waiver of objections by failing to serve a timely response to discovery if the party subsequently served a compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. Opp. (1) 4:4-14.

As to monetary sanctions, sections 2030.290(c) and 2031.300(c) provide that the court 'shall impose a monetary sanction' unless the court finds 'substantial justification' or other circumstances make the imposition of sanctions unjust.

ANALYSIS

The motions to compel objection-free responses are moot. Plaintiffs served amended responses removing all objections on September 1, 2026, providing Defendant with the exact

relief it seeks. Plaintiffs assert that any issue concerning whether Plaintiffs had the right to assert objections within the responses is now moot.

The court agrees. The purpose of a motion to compel initial responses is to obtain discovery responses without objections. Plaintiffs have now provided such responses. While Defendant is correct that Plaintiffs initially waived all objections by missing the January 13, 2026 deadline, and that the initial February 24, 2026 responses improperly included objections, those issues have been resolved by Plaintiffs' service of objection-free amended responses. No further order is necessary or appropriate as to the substance of the discovery.

Even if the court were to address the merits, Plaintiffs would be entitled to relief from waiver under sections 2030.290(a) and 2031.300(a). The statutory requirements are satisfied.

First, Plaintiffs served substantially compliant responses. They initially responded on February 24, 2026, and served objection-free amended responses on September 1, 2026. Plaintiffs represent that they had not stood on any objection, but provided diligent, meaningful, and complete substantive responses to each and every request. This distinguishes the case from situations where a party serves only evasive responses or stands solely on objections.

Second, the failure resulted from mistake, inadvertence, or excusable neglect. The calendaring error occurred after Plaintiffs had provided Defendants with 11 extensions to respond to discovery over a period of 4 months from August to December 2025. The complexity of tracking multiple extension dates supports a finding of excusable neglect, particularly where the overall pattern demonstrates cooperative discovery conduct rather than obstruction.

Defendant cites *City of Fresno v. Superior Court*, 205 Cal. App. 3d 1459, 1466-1467 (1988), for the proposition that counsel's mistake of law on the timing of the response was not a valid ground for relief from waiver of privilege objections. That case is distinguishable. There, counsel misunderstood the legal requirements for when responses were due. Here, Plaintiffs' error was a calendaring mistake in tracking extension dates, not a misunderstanding of the legal standard. The context—having provided 11 extensions over four months—demonstrates good faith rather than gamesmanship.

MONETARY SANCTIONS

Some monetary sanctions are warranted. Plaintiffs indisputably failed to serve timely responses, necessitating Defendant's filing of these motions. The 42-day delay from January 13 to February 24, 2026, imposed costs on Defendant that must be compensated.

However, the requested amount of \$12,060 for six motions (\$2,010 per motion, reflecting 8 hours of combined attorney and paralegal time per motion) is excessive and must be substantially reduced.

First, the motions are substantially identical. Plaintiffs correctly observe that a review of each of the motions demonstrates that the facts set forth therein are virtually identical and the motions themselves only required minor edits changing the plaintiff's name, statutory citations, and the specific type of discovery. Defendant's claim of 64 total hours cannot be reconciled with the reality that after drafting the first motion, the remaining motions required only ministerial changes to party names and discovery type.

Second, no separate statement was required. Where a party fails to respond to discovery, the propounding party need not file a separate statement. This eliminates the most time-consuming component of discovery motions, yet Defendant's fee request does not reflect this reduced burden.

Third, Plaintiffs' conduct demonstrates cooperation rather than obstruction. Plaintiffs provided Defendants with 11 extensions to respond to discovery over a period of 4 months. Opp. and when the calendaring error was discovered, they immediately served substantive responses and subsequently removed all objections. The discovery at issue was voluminous—Special Interrogatory Nos. 138 to 225, Requests for Production Nos. 100 to 165, Requests for Admission Nos. 18 to 26, and the corresponding Form Interrogatory No. 17.1—and Plaintiffs provided complete answers, not evasive ones. This context supports finding circumstances making full sanctions unjust under sections 2030.290(c) and 2031.300(c).

Fourth, the purpose of sanctions is compensatory, not punitive. Plaintiffs cite *City of Los Angeles v. Pricewaterhousecoopers, LLP*, 17 Cal. 5th 46, 75 (2024), for the principle that Discovery sanctions are designed to accomplish the objects of discovery, not to impose punishment. Plaintiffs ultimately provided the discovery sought, accomplishing the objects of discovery. The sanctions should compensate Defendant for reasonable expenses in bringing these motions, not punish a calendaring mistake.

A reasonable sanction reflects the actual work required: substantial time for drafting the first motion (researching the law, drafting the memorandum and declaration, preparing exhibits), minimal time for conforming the remaining five motions (changing names and discovery type), and filing fees. At Defendant's stated rates of \$300 per hour for attorney time and \$150 per hour for paralegal time Mot. to Compel (1) 14:8-12, a reasonable award is:

➤ First motion: 5 hours attorney time =	\$1,500
➤ Remaining five motions: 4 hours total attorney time =	\$1,200
➤ Paralegal time across all six motions: 3 hours =	\$450
➤ Filing fees: 6 motions × \$60 =	\$360
Total:	\$3,510

Plaintiffs cite *Cornerstone Realty Advisors, LLC v. Summit Healthcare etc.*, 56 Cal. App. 5th 771, 791 (2020), for the principle that a court has discretion to reduce the amount of fees and costs requested in order to reach a reasonable award. The court exercises that discretion to award the above in sanctions, reflecting the compensatory purpose of sanctions while recognizing the circumstances making full sanctions unjust.

DISPOSITION

The motions to compel responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents are DENIED AS MOOT.

Monetary sanctions are GRANTED in the reduced amount of \$3,210.00 total, payable by Plaintiffs Susan Lee and Cadir Lee and their counsel of record, Rossi Domingue LLP, jointly and severally, to Defendant JP Builders, Inc., within 30 days of this order.

Defendant to prepare the final proposed order, accompanied by the necessary EFS-020 Form, within 7 days of the hearing.

**COUNSEL TO APPEAR ON 9/16/26 TO INDICATE THE STATUS OF THE
UPCOMING 9/18/26 MOTIONS OR IF THEY MAY BE TAKEN OFF CALENDAR.**

- 00000 -

Calendar line 9

Case Name: *Yen Lucero v. Ha Vu Le Dao, et al.*

Case No.: 26CV483739

**MOTION TO QUASH OR IN THE ALTERNATIVE, MODIFY SUBPOENA DUCES
TECUM OF DEFENDANT'S KHOI NGUYEN TRUONG AND HIEN VAN DAO;
REQUEST FOR PROTECTIVE ORDER**

BACKGROUND

Plaintiff Yen Lucero filed this action seeking to avoid allegedly fraudulent transfers and obtain related relief. The complaint alleges that Defendant, HA VU LE DAO, (“Judgment Debtor”), is the judgment debtor in the related case, Yen Lucero V. Ha Vu Le Dao & Walter Nguyen, Santa Clara County Superior Court Case No. 21CV375921. Plaintiff obtained a judgment that was duly entered in favor of Plaintiff and against Judgment Debtor in the amount of \$69,200.95, plus accruing interest and costs as of on October 25, 2024.

The complaint further alleges that on or about March 10, 2025 (hereinafter 'the Transfer Date'), Defendants Nguyen and Dao purchased real property located at 536 Cinnamon Dr, San Jose, CA 95111 (hereinafter 'the Subject Property'), for a purchase price of \$725,000.00, with a substantial down payment of \$425,000.00. Plaintiff alleges that the judgment debtor made substantial cash withdrawals from her bank accounts, and/or transferred funds to Defendant Nguyen, Defendant Dao, or other entities, which funds were used, in whole or in part, to fund the \$425,000.00 down payment for the Subject Property.

On May 5, 2026, plaintiff served Notices to Consumer and Deposition Subpoenas for Production of Business Records directed to financial institutions, including Wells Fargo Bank, JP Morgan Chase, and Bank of America seeking extensive banking and financial records concerning Hien Van Dao and Khoi Nguyen Truong. The subpoenas seek records dating from January 1, 2019 through the present, including all monthly account statements, wire transfers, deposits exceeding \$5,000, cashier's checks, loan applications, and financial statements.

Defendants timely filed this motion as overbroad, invasive, and premature. No opposition has been filed.

LEGAL STANDARD

Code of Civil Procedure section 1987.1 provides that a court may make an order quashing a subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including protective orders. The court may in its discretion award the amount of reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification, or that one or more of the requirements of the subpoena was oppressive.

Code of Civil Procedure section 1987.2 governs subpoenas for personal records maintained by third parties and requires that notice be given to the consumer whose records are sought. When

records of a party are sought from a third-party custodian, a motion to quash under section 1987.1 is the proper method of objection.

Discovery is governed by Code of Civil Procedure section 2017.010, which permits a party to obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may be limited where the burden, expense, or intrusiveness clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code of Civil Procedure section 2017.020.

The party seeking discovery from a third party bears the burden of establishing relevance and need. Financial records implicate significant privacy interests under the California Constitution. The party seeking such records must demonstrate that the information sought is directly relevant and essential to the fair resolution of the lawsuit, and that the scope of discovery is narrowly tailored to serve that need.

ANALYSIS

A. Temporal Scope

The subpoenas seek financial records from January 1, 2019 through the present—a period exceeding seven years. The alleged fraudulent transfer occurred on March 10, 2025. The judgment underlying plaintiff's claim was entered on October 25, 2024.

Plaintiff's complaint alleges that the judgment debtor made substantial cash withdrawals from her bank accounts, and/or transferred funds to Defendant Nguyen, Defendant Dao, or other entities, which funds were used, in whole or in part, to fund the \$425,000.00 down payment for the Subject Property. The complaint also alleges that the judgment debtor failed to provide bank statements (prior to June 2025) and references approximately \$19,000.00 in cash withdrawals from accounts provided by Judgment Debtor from June 2025 to November 2025.

The subpoenas are addressed to the moving defendants Hien Van Dao and Khoi Nguyen Truong—who are parties to this action but are not the judgment debtor Ha Vu Le Dao. The complaint alleges that these defendants purchased the property using funds allegedly transferred from the judgment debtor.

Records dating back to January 1, 2019—more than five years before the judgment and nearly six years before the alleged transfer—are facially overbroad absent some articulated connection to the fraudulent transfer claims. Defendants contend that Plaintiff provides no explanation why records dating back to 2019 are relevant to allegations concerning a 2025 real estate transaction. Plaintiff has filed no opposition and has not articulated any basis for seeking records from that date.

To establish a fraudulent transfer claim, plaintiff must trace the source of the funds used for the March 2025 purchase. A reasonable scope for records of the alleged transferees would encompass a period sufficient to establish their financial condition before the transfer, the

source of funds for the down payment, and any subsequent transactions that might indicate knowledge of fraud or continuing wrongful conduct.

The court finds that records from May 1, 2024 (approximately six months before the entry of judgment) through the present are reasonably calculated to lead to admissible evidence regarding the alleged fraudulent transfer in March 2025. This timeframe captures a reasonable pre-judgment period in which relevant transfers between the judgment debtor and the moving defendants may have occurred, together with the period from the entry of judgment through the alleged transfer and the months thereafter. It permits plaintiff to trace the source and use of funds used for the down payment while avoiding the excessive burden and privacy intrusion of more than seven years of financial records.

The motion to modify the temporal scope is GRANTED. The subpoenas are modified to seek records from May 1, 2024 through the present.

B. Request No. 1: Monthly Account Statements

Request No. 1 seeks "All monthly account statements for all checking, savings, and money market accounts". Monthly account statements for the relevant period (as modified above) are reasonably calculated to show the source of the \$425,000 down payment and any transfers between the judgment debtor and these defendants. As modified by the temporal limitation, this request is appropriately tailored.

C. Request No. 2: Wire Transfers

Request No. 2 seeks "All records of incoming and outgoing wire transfers, specifically including international wire transfers from Vietnam or other foreign jurisdictions". Wire transfer records are directly relevant to tracing the alleged fraudulent transfer and establishing the source of funds for the property purchase. As modified by the temporal limitation, this request is appropriate.

D. Request No. 3: Large Cash Deposits

Request No. 3 seeks All deposit slips and records of cash deposits exceeding \$5,000.00. This request is reasonably tailored to the allegations in the complaint regarding "substantial cash withdrawals" allegedly used to fund the down payment. The \$5,000 threshold reasonably limits the scope while capturing potentially relevant transfers. As modified by the temporal limitation, this request is appropriate.

E. Request No. 4: Cashier's Checks

Request No. 4 seeks "All records of cashier's checks issued or deposited, specifically those used for the purchase of real property at 536 Cinnamon Dr. San Jose, CA". This request is directly tied to the alleged fraudulent transfer and the purchase of the subject property. It is narrowly tailored and appropriate.

F. Request No. 5: Loan Applications and Financial Statements

Request No. 5 seeks All loan applications or financial statements submitted by the account holder to the bank. Defendants argue that this request "is exceptionally invasive and would disclose confidential information far beyond any issue raised by the Complaint" and request that Request No. 5 be quashed in its entirety.

The complaint alleges that "Defendants Nguyen and Dao obtained a loan in the amount of \$300,000.00 from JPMORGAN CHASE BANK NA for the purchase of the Subject Property". A loan application for the mortgage on the subject property would reflect the source of the down payment funds and defendants' representations regarding their financial condition at the time of the transfer. Such information is directly relevant to plaintiff's fraudulent transfer claims.

However, Request No. 5 as written seeks all loan applications and financial statements submitted to any bank, not limited to the loan for the subject property. This sweeps too broadly. The request is modified to seek only loan applications and financial statements submitted in connection with the purchase of the property located at 536 Cinnamon Drive, San Jose, CA 95111.

As so modified, Request No. 5 is narrowly tailored to the transaction at issue and is appropriate.

G. Defendants' Procedural Arguments

Defendants contend that this action is also subject to a pending Demurrer and a pending Motion to Expunge Lis Pendens and argue that the Court should first determine whether Plaintiff possesses viable claims and whether the Lis Pendens survives judicial review before compelling disclosure of financial records. The mere pendency of a demurrer or motion to expunge a lis pendens does not automatically stay discovery. If defendants believed discovery should be stayed pending resolution of threshold motions, the proper course was to seek a formal stay. No such stay has been granted, and the court declines to impose one at this stage given the substantial modification to the subpoenas ordered herein.

Defendants also argue that Plaintiff has also pursued related relief in Defendant Ha Vu Le Dao's Chapter 7 bankruptcy proceeding, including a Rule 2004 examination request and an adversary proceeding and that the issues raised in those proceedings substantially overlap with the allegations Plaintiff relies upon in seeking the financial records at issue here. The existence of parallel bankruptcy proceedings does not preclude discovery in this action. These are separate proceedings that may involve different parties, different claims, and different remedies.

H. Privacy Concerns and Protective Order

Defendants correctly note that financial records implicate significant privacy interests. However, plaintiff has alleged a fraudulent transfer of substantial assets to these defendants to avoid satisfaction of a judgment. The modified requests are narrowly tailored to establish or refute the source of the funds used to purchase the property.

The court finds that plaintiff's need for the records, as modified, is sufficient to warrant production. The court's modification substantially narrows the scope of production from more than seven years to a limited window beginning approximately six months before the judgment, and further limits Request No. 5 to loan applications related solely to the subject property transaction. These modifications substantially reduce the privacy intrusion while preserving plaintiff's ability to pursue legitimate discovery.

Defendants' request for a protective order is addressed by the modifications ordered herein. To the extent defendants seek additional confidentiality protections, the parties may stipulate to a protective order governing the use and disclosure of the financial records produced.

DISPOSITION

The motion to quash is DENIED.

The motion to modify is GRANTED. The subpoenas are modified as follows:

1. Temporal Scope: All requests are limited to the period from May 1, 2024 through the present.
2. Request No. 5 is modified to seek only loan applications and financial statements submitted in connection with the purchase of the property located at 536 Cinnamon Drive, San Jose, CA 95111.
3. Requests Nos. 1 through 4, as set forth in the subpoenas and as modified by the temporal limitation in paragraph 1 above, shall stand.

The financial institutions shall comply with the modified subpoenas. Production shall occur within 30 days of service of this order on the financial institutions, or on such other date as the parties may stipulate.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing.

- oo0oo -